

the *will* only, and not to give a right to those who claim, as the next of kin, by *operation of law*. The case of *Phillips v. Phillips* (*d*), before Sir J. Leach, to the contrary, has repeatedly received the disapprobation of the Court (*e*), and has now been overruled (*f*).

**Direction for sale, and that the proceeds shall be personal estate.** — If a testator direct the proceeds of the sale to be taken as personal estate, and *nothing more is said*, then, as every part of the will ought, if possible, to have an operation, the meaning of the testator might be thought to be, that the realty should be converted into personalty for the benefit of the next of kin by implication; and in *The Countess of Bristol v. Hungerford* (*g*), where the testator directed the proceeds of the sale to be taken as personal estate, and go to his executors, to whom he gave 20*l.* a-piece, it is said the next of kin were declared entitled. The two *next of kin*, however, were also the *co-heirs*, and therefore as *utrâque viâ datâ* the same persons would claim, it was obviously unnecessary to determine the question.

**Fitch v. Weber.** — And in a late case where the testator even said, “nothing shall result to the heir-at-law,” it was held that nevertheless a bequest to the next of kin was not implied, but that the heir-at-law must take in spite of the intention to the contrary (*h*).

**Whether the interest results as real or personal estate.** — If the execution of the trust require the estate to be sold, but the purposes of the trust do not exhaust the proceeds, the part that \* is undisposed of will result to [\*151] the heir in the character of personalty, and, though the sale was not actually effected in his lifetime, will devolve on his executor (*a*); and in the case of a trust created by a

(*d*) 1 M. & K. 649.

(*e*) See *Fitch v. Weber*, 6 Hare, 145; *Shallcross v. Wright*, 12 Beav. 505; *Flint v. Warren*, 16 Sim. 124.

(*f*) *Taylor v. Taylor*, 3 De G. M. & G. 190; S. C. 1 Eq. Rep. 239; *Robinson v. London Hospital*, 10 Hare, 19.

(*g*) Pr. Ch. 81; S. C. 2 Vern. 645; corrected from Reg. Lib. in *Rogers v. Rogers*, 3 P. W. 194, note (C); and

see Sir W. Basset's case, cited Bayley v. Powell, 2 Vern. 361.

(*h*) *Fitch v. Weber*, 6 Hare, 145; and compare *Johnson v. Johnson*, 4 Beav. 318.

(*a*) *Hewitt v. Wright*, 1 B. C. C. 86; *Wright v. Wright*, 16 Ves. 188; *Smith v. Claxton*, 4 Mad. 484; *Dixon v. Dawson*, 2 S. & S. 327; *Jessopp v. Watson*, 1 M. & K. 665; *Hatfield v.*